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**TO: MELINDA E. BARRETT, MAYOR
TIM JORDAN, CITY COUNCIL PRESIDENT**

**FROM: LISA MEAD AND ELIZABETH LYDON
CITY SOLICITORS**

RE: E-BIKE ORDINANCE

DATE: September 11, 2026

I. Introduction

Reference is made to the above captioned matter. In that connection, you have requested that we provide an updated opinion regarding the City of Haverhill's authority to regulate electric bicycles ("e-bikes") and motorized bicycles and scooters, and an ordinance regulating the same. Massachusetts law authorizes municipalities to regulate e-bikes and motorized bicycles and scooters in limited circumstances, provided the City conducts a public hearing and provides adequate notice to its residents. Although certain restrictions are not currently allowed by ordinance, the proposed Ride Safe Act would expand and clarify the Commonwealth's regulatory framework and the scope of municipal authority.

II. Current Municipal Authority

M.G.L. c. 90 authorizes motorized bicycles and scooters on public ways with certain restrictions and in accordance with all traffic laws unless expressly prohibited. M.G.L. c. 85, §11B $\frac{3}{4}$ (b) provides that *"electric bikes are afforded the same rights and privileges, and are subject to the same duties, as traditional bicycles, and shall be subject to all of the duties, of the operator of a bicycle or duties related to a bicycle set forth in sections 11B and 11B1/2, any general or special law, regulation or local ordinance."* Chapter 85 § 11B $\frac{3}{4}$ authorizes municipalities, after notice and a public hearing, to adopt ordinance or regulations prohibiting or otherwise regulating electric bicycle use on bike paths, bikeways, and natural surfaces trails including those imposing speed limits.

State law is preemptive in the areas of motorized scooters and bicycles or class 1 and 2 electric bicycles. Therefore, the City's ordinance and regulations are limited to the confines of what the statute specifically authorizes the City to regulate as set forth above. The draft revised ordinance, attached as Exhibit A, mimics the applicable statutes which require operators to use a helmet and follow traffic safety laws and imposing fines and operational restrictions, and adds language specific to your requests

restricting use of such vehicles on public sidewalks, bike paths, bikeways and trails, playgrounds and public property.

Driving under the influence and impoundment of vehicles cannot be addressed by ordinance as these areas are preempted by statute and specific to motor vehicles. M.G.L. Chapter 90, Section 24 is specific to operating a motor vehicle under the influence, which definition under Section 1 specifically states, "The definition of "Motor vehicles" shall not include electric bicycles or motorized bicycles." Similarly, M.G.L. c. 159B related to towing and impoundment is also specific to motor vehicles. Therefore, restrictions related to motorized recreational vehicles cannot be enacted by ordinance in these subject areas.

III. Proposed Safe Ride Act

Although not yet enacted, the proposed Ride Safe Act (S. 3077), entitled *An Act to Enhance the Safe Use of Micromobility Devices*, would significantly revise the Commonwealth's regulations of e-bikes and other micromobility devices. If enacted, the bill would establish a maximum designed Speed Tier classification system, allowing operational and safety requirements to vary based upon a device's maximum manufacturer designed speed. The proposed legislation provides greater flexibility in regulating higher-speed devices.

If enacted in its current form, many of the bill's substantive regulatory provisions would not become effective until January 1, 2028.

Conclusion

The draft ordinance restricts use of motorized bicycles and scooters and ebikes on bike paths, bikeways, and natural surface trails pursuant to G.L. c. 85, §§ 11B ¾ and G.L. c. 90. The City may not, however, prohibit their operation on public ways. If S. 3077 is enacted, the City may amend any adopted ordinance to reflect the new statutory framework and additional regulatory authority granted by the legislation.

Article XI Recreational Motorized Vehicles

§ 222-62 Definitions.

As used in this article, the following terms shall have the meanings indicated:

RECREATIONAL MOTORIZED VEHICLES

Recreational motorized vehicles are described as the following: motorized scooters or motorized bicycles, or class 1 or class 2 electric bicycles all as defined in M.G.L. c. 90, § 1.

§ 222-63 Operating restrictions.

It shall be unlawful for any person to operate or permit to operate recreational motorized vehicles within the City of Haverhill under any of the following circumstances:

- A. On public sidewalks.
- B. On public bike paths, bikeways or natural surface trails.
- C. In public parks and public conservation and recreational areas.
- D. On public playgrounds or school property.
- E. On private property without the prior written consent of the owner or occupant of said property. No written consent shall be required for operation of any recreational motorized vehicle upon the property of any private club or other organization that permits the use of similar recreational vehicles by the club members.
- F. No person shall operate a motorized scooter upon any way at any time after sunset or before sunrise.
- G. To have a second rider on the same scooter.
- H. Failing to wear protective headgear conforming to Registry of Motor Vehicles standards and/or noncompliance with the helmet requirements of MGL c. 85, § 11B ½, as may be amended from time to time.
- I. Recreational motorized vehicles, excluding electric bicycles, shall not be operated on any way by a person under sixteen years of age, nor a person not possessing a valid driver's license or learner's permit, nor shall any operator permit any other person to ride as a passenger, and shall not operate at a speed in excess of the limit established by M.G.L. c. 90.

§ 222-64 Legal operation to conform with traffic regulations.

Any person legally entitled to operate a recreational motorized vehicle, as set forth herein, must conform with all traffic laws and regulations of the Commonwealth.

§ 222-65 The parent or guardian of a person under 18 years of age shall not authorize or knowingly permit that person to violate this ordinance. A violation by a person under 18 years of age shall not affect any civil right or liability nor shall the violation be a criminal offense.

§ 222-66 Violations and penalties.

Any violation of said article shall be subject to a fine of \$25 for the first offense and no more than a fine of \$50 for subsequent offenses. Ticketing procedures for traffic violations shall be issued in accordance with M.G.L. c. 90C. All fines collected by a city or town pursuant to Section 11E of M.G.L. c. 85 shall be used by the City for the development and implementation of bicycle safety programs. If the offender is under 16 years of age, the officer may give notice to the parent or guardian of the offender.